

A CONSTITUTIONAL LEAGUE OF PEACE IN THE
STONE AGE OF AMERICA
THE LEAGUE OF THE IROQUOIS AND ITS
CONSTITUTION

BY

J. N. B. HEWITT

Bureau of American Ethnology

FROM THE SMITHSONIAN REPORT FOR 1918, PAGES 527-545



(PUBLICATION 2572)

WASHINGTON
GOVERNMENT PRINTING OFFICE
1920

A CONSTITUTIONAL LEAGUE OF PEACE IN THE
STONE AGE OF AMERICA

THE LEAGUE OF THE IROQUOIS AND ITS
CONSTITUTION

BY

J. N. B. HEWITT

Bureau of American Ethnology

FROM THE SMITHSONIAN REPORT FOR 1918, PAGES 527-545



(PUBLICATION 2572)

WASHINGTON
GOVERNMENT PRINTING OFFICE
1920

The Project Gutenberg eBook of A constitutional league of peace in the stone age of America

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: A constitutional league of peace in the stone age of America
The League of the Iroquois and its constitution

Author: J. N. B. Hewitt

Release date: March 22, 2023 [eBook #70345]

Language: English

Original publication: United States: The Smithsonian Institution, 1920

Other information and formats: www.gutenberg.org/ebooks/70345

Credits: Robert Tonsing and The Online Distributed Proofreading Team at <https://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive)

*** START OF THE PROJECT GUTENBERG EBOOK A
CONSTITUTIONAL LEAGUE OF PEACE IN THE STONE AGE OF
AMERICA ***

**A CONSTITUTIONAL LEAGUE OF PEACE IN
THE
STONE AGE OF AMERICA
THE LEAGUE OF THE IROQUOIS AND ITS
CONSTITUTION**

BY

J. N. B. HEWITT
Bureau of American Ethnology

FROM THE SMITHSONIAN REPORT FOR 1918, PAGES 527-545



(PUBLICATION 2572)

WASHINGTON
GOVERNMENT PRINTING OFFICE
1920

A CONSTITUTIONAL LEAGUE OF PEACE IN THE STONE AGE OF AMERICA.

THE LEAGUE OF THE IROQUOIS AND ITS CONSTITUTION.

By. J. N. B. Hewitt.
Bureau of American Ethnology.

In the Stone Age of America the Mohawk, the Onondaga, the Oneida, the Cayuga, and the Seneca, five Iroquoian tribes dwelling in the central and the eastern regions of what is to-day the State of New York, established a tribal federation or league, with a carefully prepared constitution, based on peace, righteousness, justice, and power. These five Iroquois tribes spoke dialects of the Iroquoian stock of languages, which is one of about 50 spoken north of Mexico.

After more than four years of a world war, characterized by such merciless slaughter of men, women, and children, by such titanic mobilization of men and weapons of destruction, and by such hideous brutality, that no past age of savagery has equaled them, the peoples of the earth are now striving to form a league of nations for the expressed purpose of abolishing the causes of war and to establish a lasting peace among all men.

So, of more than passing interest is the fact that in the sixteenth century, on the North American Continent, there was formed a permanent league of five tribes of Indians for the purpose of stopping for all time the shedding of human blood by violence and of establishing lasting peace among all known men by means of a constitutional form of government based on peace, justice, righteousness, and power, or authority.

Its founders did not limit the scope of this confederation to the five Iroquoian tribes mentioned above, but they proposed for themselves and

their posterity the greater task of gradually bringing under this form of government all the known tribes of men, not as subject peoples but as confederates.

The proposal to include all the tribes of men in such a league of comity and peace is the more remarkable in view of the fact that that was an age of fierce tribalism, whose creed was that no person had any rights of life or property outside of the tribe to whose jurisdiction he or she belonged, and that every person when beyond the limits of his or her tribe's protection was an outlaw, and common game for the few who still indulged in the horrid appetite of cannibalism. So that the doctrine of the founders of the league that all persons by adopting their formulae could forego the shedding of human blood and become related as "fathers" and "mothers" and "sons" and "daughters," in the terms of Iroquoian kinship and affinity, was revolutionary and most disturbing from the viewpoint of this intense tribalism. It was the central teaching of Deganawida, the great statesman and lawgiver of the Iroquois people in the sixteenth century, that out of the union of a common motherhood and a common fatherhood arise the daughtership of all women and the sonship of all men, and the rich fellowship of all mankind.

The establishment of the league of the five Iroquois tribes in the closing decades of the sixteenth century was in large measure not only a drastic reformation but also an experiment. Avowedly it was designed as an institution for the extension and preservation of peace and equity and righteousness among all men; and it made a fundamental departure from the practice of the past in completely excluding in so far as terms go the military power from participation in the conduct of purely civil affairs.

When using the terms war and warfare, it must be remembered that while they denoted defensive, apprehensive, and offensive strife, and the mood and the means (the weapons belonging thereto), they did not imply the war and warfare waged by a military State, a body of soldiers, drilled and regimented and organized independently of the civil body. There were, strictly speaking, no armies among tribal men; only the beginnings, the more or less developed germs of these things. There were, indeed, groups of fighters who were regimented and organized, not in a practical or rational manner and mood, but in accordance with mythical and sociological conceptions and predispositions, and strictly with relation to their kinship

status, individually and severally, in the tribal organization to which they belonged. For every tribe, great or small, or group of tribes, was, exclusive of the women and the children, an inchoate, undifferentiate army, a group of instant or else actual fighters.

For like reasons there was no State religion, where all forms and moods of it were tolerated and practised.

At the period of the formation of the league and for at least 75 years afterwards these five tribes, thus united, were surrounded by a number of powerful and hostile tribes, nearly all of which were cognate with them in speech. On the St. Lawrence River, approximately on the present sites of the cities, Montreal and Quebec, dwelt two strong Huron tribes. On the upper Ottawa River were the Algonquin and their congeners. Around Lake Simcoe were two more powerful Huron tribes, to which the two mentioned above as living on the St. Lawrence River migrated about the beginning of the seventeenth century, and formed an alliance with them. These are the four Huron tribes mentioned in the Jesuit Relations. Southward from the Huron tribes, and in the peninsula lying westward from Niagara River and northward from Lake Erie and extending eastward over Niagara River to the watershed of the Genesee River in New York State, were situated the numerous towns of the powerful "neuter nation," also of cognate speech. South and southeastward of Lake Erie dwelt the warlike Erie, who also were of cognate speech with the Iroquois tribes; and still farther eastward were the little known Black Minqua also of cognate language. In the upper Susquehanna river valley, especially in the Wyoming valley, lived the noted Massawomeke also of cognate speech. On the lower Susquehanna dwelt the fiercely warlike Conestoga. On the Delaware river and its affluents dwelt the Lanape or Delaware tribes who spoke Algonquian dialects. Eastward, along and beyond the Hudson River dwelt the Mohegan and their cognates who also spoke Algonquian dialects. Such summarily was the tribal environment of the five Iroquois tribes at the era of the institution of their league or confederation. Tradition is silent as to any extensive warfare with these surrounding tribes anterior to the founding of the league.

History records the use of two fundamentally distinct methods of grouping peoples by means of institutional bonds. The grouping of men in this manner has been aptly termed regimentation. The two systems mentioned are the tribal system of regimentation and the national system of

regimentation. In the first, men are regimented or organized on the basis of kinship and affinity, real or as a legal fiction, and in the second, men are regimented or organized in institutional units on the basis of territory. But history records transitional forms of organization, and the most important of these is the feudal, for both methods mentioned above are found in feudal society, showing transition from tribal to national society and government.

Now, the tribes of the Iroquoian stock of languages are regimented or organized on the basis of kinship and affinity, real or as a legal fiction, and they trace descent or lineage of blood only through the mother.

To grasp fully and to comprehend clearly the structure and the workings of the great institution which is called the league or confederation of the Five Nations, one must have a summary but clear knowledge of the several constituent units which in the last analysis have voice and place in its structure and workings.

In brief, these are the ohwachira (= the uterine family), of which one or more constitutes a clan; the clan, of which one or more may constitute a sisterhood, or, as it is usually called, a phratry of clans; the sisterhood or phratry of clans, of which only two constitute a tribe in Iroquois social organization; the tribe, of which two or three constitute a sisterhood or phratry of tribes; and finally the league or confederation which is composed of just two sisterhoods or phratries of tribes.

The common noun ohwachira (as pronounced by the Mohawk and other *r*-sounding dialects) or ohwachia (as uttered by the Onondaga and other *r*-less dialects) signifies a group of male and female uterine kin, real, or such by legal fiction. It includes all the male and the female progeny of a woman, and also the progeny of a woman and of all her female descendants, tracing descent of blood in the female line and of such other persons as may have been adopted into it. In so far as known the ohwachira, unlike the clan, does not bear the designative name of a tutelary or other protecting genius, or "totem" as it is commonly but loosely called when applied to a clan; and yet it is commonly known that the influential matron of an ohwachira usually bears the reputation of being deft in the peculiar arts of the sorceress, each of which being the potency or orenda of some tutelary.

The matron of an ohwachira is usually, not always, the oldest woman in it. But, by becoming incapacitated by age or other infirmity to manage the affairs of an ohwachira as its moderator, she may ask permission to resign so that a much younger woman of recognized ability and industry and integrity of character may be nominated and installed to preside over the ohwachira in her stead.

Naturally, the ohwachira had as many firesides as it had women who were married. Each married woman of an ohwachira used one side of one of the fires at the center of the lodge. The Iroquoian lodge was extended lengthwise to accommodate those who dwelt in it, and the fires were kindled along the center from place to place.

The members of an ohwachira have (1) the right to the name of the clan of which that ohwachira is a constituent unit; (2) the right of inheriting property from deceased members of it; (3) the right to take a part in the councils of the ohwachira; (4) the right to adopt an alien through the advice of the presiding matron of it.

In the present organization of the league, only certain ohwachira have inherited chiefship titles, the principal and the vice-chief, and, consequently, the right to name any of its members to fill these offices; after the formation of the league these nominees had to be installed by federal officers, but previously by tribal officers. Strictly speaking, these titles of chiefship belong to the mothers in the ohwachira, over which the presiding matron held a trusteeship.

Rarely, the offspring of an adopted alien came to constitute an ohwachira having chiefship titles; but this was first only a trusteeship of the titles, which belonged to an extinct, moribund, or outlawed, ohwachira. A basic rule of the constitution of the league of the Iroquois provides in the case of the extinction of an ohwachira owning chiefship titles, that for the preservation of this title, it shall be placed in trust with a sister ohwachira of the same clan, if such there be, during the pleasure of the council of the league. This was a most important law in view of the fact that no new federal titles were instituted after the death of Deganawida, the prophet statesman of the Iroquois.

The women of marriageable age and the mothers in the ohwachira had the right to hold councils; especially, such as those at which candidates for

chief and vice-chief might be nominated by the mothers alone. At such councils these women had the right to formulate some proposition for discussion by the tribal council; it might be done in conjunction with other ohwachira. (This is, in embryo at least, the modern so-called right of initiative.) In like manner, a proposition might be made to the tribal council to submit to the suffrages of all the people, including infants (the mothers casting their votes), any question which might be occupying the attention of the council or the people. (This is, in embryo at least, the modern so-called right of referendum.)

It is the right of the matron of the ohwachira whose chief wanders away from the path of rectitude to take the initial step in his deposition for cause—first, by going in person to him and warning him to reform and to return to the path of right and duty; if he fails to heed this warning she seeks out her brother or eldest son, as a representative of the men of her ohwachira, and together they go to give the erring chief the second warning. If still he persists in the neglect of duty and in doing wrong, the matron then goes to the chief warrior of the ohwachira, and then these three together go to him and merely inform him that he must appear on a given day at the tribal council. There the chief warrior asks him categorically whether he will or will not conform to the expressed wish of his ohwachira. If he refuse to reform he is at once deposed, the chief warrior figuratively removing from his head the “symbolic horns” (i. e., receiving back the wampum strings which are the certificate of his official title) of his title and handing them to the matron. (This is, in brief, the recall of modern times.)

In the structure of the league several ohwachira, some having a chiefship title, are incorporated to form one clan, so that this clan is represented in the tribal or the federal council by two or more chieftains. It so happens that the Mohawk and the Oneida tribes have only three clans each; but each of these clans has three ohwachira which have a principal chief and a vice-chief, respectively; and so these two tribes are represented in council, when all are present, by nine chiefs and nine vice-chiefs or messengers, the latter of course have no voice in the deliberations except in case the chief be, for some reason, unable to attend a council when he may deputize for such council his messenger to act for him. In the nature of things, every ohwachira of the Iroquoian tribes formerly possessed and worshiped, in addition to those owned by individuals, one or more tutelary deities or genii

called ochinagenda, in modern usage, but formerly named oiaron (or oyaron) with a larger meaning, which customarily were in the secret custodianship or trusteeship of certain wise women who were usually named physicians, but who were in fact also so-called witches.

The ohwachira or uterine family was the primary unit of the social organization of all Iroquoian tribes. It must not be overlooked that the members of an ohwachira could not marry one another, nor could the members of a clan, composed of one, two, or more, such ohwachira, which by thus uniting to form a single organic unit become sisters, or sister ohwachira, and the members of the unit so formed become exogamous with relation to one another. The union of two or more organic units naturally produced an organization of a higher order and an enlargement and a multiplication of rights, obligations and privileges.

It will be needful to keep in mind the fact that the women of an ohwachira who elected to marry had to do so only with men from ohwachira which had a cousin relationship to their own, for they must not commit incest by marrying men from their own ohwachira or men from a sister ohwachira. Thus, every ohwachira which had women who were married was interrelated with many cousin streams of blood, and it is these outside ties which bound together the various blood streams. Iroquoian society is then held together by the bonds of affinity, while the tracing of the descent of blood through the women preserved its purity and insured its continuity.

When an ohwachira became an integral part of a clan—a higher unit—it necessarily delegated some of its self-government to this higher unit in such wise as to make this union of coordinate units more cohesive and interdependent. Thus the institution of every higher organic unit produced new privileges, duties, and rights, and the individual came under a more complex control and his welfare became more secure through tribunals exercising a greater number of delegated powers in wider jurisdiction.

Status in an Iroquoian tribe was secured only by being born into it, by virtue of birth in one of its uterine families or by adoption into it. But an alien could be and was adopted into citizenship in the clan and tribe only by being adopted into an ohwachira (uterine family) of some clan. The ceremony of adoption was so potent that where two alien sisters were

adopted, each into a clan which intermarried with the other, their children intermarried as coming from exogamous groups.

Whatever land was held by the ohwachira for cultivation and on which fuel and berries and nuts and roots and bark and medicines and poisons were procured, belonged exclusively to the women of the ohwachira.

Ordinarily, the members of an ohwachira were obligated to purchase the life of one of its members who had forfeited it by a homicide and to pay for the life of the victim as well.

It was seen that the earth produced things which were fixed in her breast; all the things that grow whether corn, beans, squashes, berries, or nuts, are nourished directly by the earth. In like manner it appeared that woman, the mother, was a producer, and nourished what she produced on her breast; hence, the woman and the earth are sisters. So the cultivation of the things that grow out of the earth is especially the duty and pleasure of woman. While the pursuit of game, and fish, and birds, and men who are not fixed in the earth was strictly within the prerogative of the men.

The ohwachira through its matron exercised the right to spare, or to take, if needs be, the life of prisoners of war in its behalf and offered to it for adoption. Such briefly is the ohwachira of Iroquoian social organization.

The Iroquoian clan is an intratribal exogamic body of uterine kin, real, or such by legal fiction, regimented for the purpose of securing and promoting their social and political welfare. The clan has a name, which serves as a class or preferably unit name for its members, and which is derived usually from some animal or bird or reptile belonging to the habitat of the ancestors of this body of kin, or to its customary tutelary genius. The lineal descent of blood, the inheritance of property, both personal and common, and the hereditary right of eligibility to public office and trust are traced in the clan through the female line attained through the action and interaction of its constitutive units—the ohwachira (the uterine families).

The Iroquoian clan is constituted organically of one or more ohwachira; its chief or chieftains came to it through its constituent ohwachira which may have possessed such officers. A large number of the characteristics of the ohwachira may be predicated of the clan, for the reason that the ohwachira gave up for administration to this larger grouping a number of

their functions. So that a clear knowledge of the ohwachira is first needed to understand what a clan is.

The following summary of the characteristic rights and privileges of an Iroquoian clan may be enlightening: (1) The right to a distinctive name, which an invariable custom derives from some animal, bird, or reptile, characteristic of the habitat, which may have been regarded as a guardian genius or protecting deity. (2) Representation by one or more chiefs in the tribal council. (3) An equitable share in the communal property of the tribe. (4) The right and obligation to have its nominations for chief and subchief of the clan confirmed and installed by officers of the tribal council in earlier times, but since the institution of the league, by officers of the federal council. (5) The right to the protection of the tribe of which it is a constituent member. (6) The right of the titles of the chiefships and subchiefships hereditary in its ohwachira(s). (7) The right to certain songs, chants, dances, and religious observances. (8) The right of its men or women, or both together, to meet in council. (9) The right to the use of certain names of persons, which are given to its members. (10) The right to adopt aliens through the action of a constituent ohwachira. (11) The right of its members to a common burial ground. (12) The right of the mothers of constituent ohwachira(s), in which such official titles are inherent, to nominate candidates for chief and subchief; some clans have more than one of each class of chiefs. (13) The right of these same mothers to take the prescribed steps for impeaching and deposing their chiefs and subchiefs. (14) The right to share in the religious rites, ceremonies, and public festivals of the tribe.

The duties incidental to clan membership are the following: The obligation not to marry within the clan, formerly not even within the sisterhood or phratry of clans, to which the one in question belonged; the effect of membership in the sisterhood of clans was to make all men either mother's brothers or brothers, and all women mothers or sisters. (2) The joint obligation to purchase the life of a member of the clan which has been forfeited by homicide or the murder of a member of the tribe or of an allied tribe. (3) The duty and obligation to aid and to defend its members in supplying their wants, redressing their wrongs and injuries through diplomacy or by force of arms, and in avenging their death. (4) The joint obligation to replace with prisoners or other persons other members who

have been lost or killed, belonging to any ohwachira of a clan to which they may be related as father's brothers or father's clansmen, the matron of such ohwachira having the right to ask that this obligation be fulfilled.

The clan name is not usually among the Iroquois the common designation of the animal or bird or reptile after which the clan may be called, but very commonly denotes some marked feature or characteristic or the favorite haunt of it, or it may be just a survival of an archaic name of it.

The number of clans in the different Iroquois tribes varies; the smallest number is three representative clans, found in the Mohawk and the Oneida, while the Seneca have nine and the Onondaga eight. There are also some clans which, having no chief titles, are seldom named in public.

In historical times, and in the past as far as tradition informs us, every clan belonged to a sisterhood or phratry of clans, and so was not directly a member of a tribe. In all Iroquois tribes two sisterhoods or phratries of clans are found, each forming one side of the dual tribal organization. One of the tribal sides represents the fatherhood or male principle and the other the motherhood or female principle among living things.

There are three native terms in the speech of the Iroquois which may be translated into English by the word chief or chieftain. These are in the third person and in the Mohawk dialect, as follows: rakowā'něⁿʼ, ră'sěñnowā'něⁿʼ, and royā'neʼr, each signifying "he (is) a chief." The first two are generic and so may be applied to civil or military chiefs, while the last is at present restricted to chieftains of the League, who represent their tribal constituencies both in the tribal council and in the federal council of the League, and also is applied to the women chieftainesses. The chief bearing the last name has a subchief or messenger, who is usually mentioned by the agnomen, "The Cane" or "The Ear," and who is symbolically represented as sitting on the roots of the Tree (the Chieftain) whose subchief he is. It is the duty of this subchief to see personally that the chief's orders in his official capacity are carried out—either in person or by the aid of the warriors or other members of the clan.

The first of these official names signifies "he great, noble, (is)," being derived from the stem meaning, "great, large, or noble." The second, meaning "his name great, noble, (is)," is derived from a compound stem composed of the noun "name" and the attributive qualifying stem just

mentioned. The third term is notionally not connected with the two terms just mentioned. Its stem, -yā'ne'r, means "beneficent, bountiful, good, promotive of good or of welfare, (*to be*).” This stem is also the basis of the words for Law, the Commonwealth or the Institution of the League. Thus, in Iroquoian thinking a law, or the body of laws, is what brings to pass what is highestly or greatestly good. And so, a federal chief could not engage in warfare while holding such a title.

Some biographic notice of at least four of the chief actors in the events leading up to the institution of the league may be of interest and be instructive. These four are Deganawida, Hiawatha, Djigonsasen, and Atotarho (Wathatotarho).

To begin with the first named. Deganawida was one of the world's wonder children. His conception, birth, and career are largely idealized by tradition. Prophetic dreams and visions announced to his doubting grandmother his alleged divine origin and heavenly mission among men; prodigies attended his birth and childhood; he had power on earth and in heaven—that is to say, he knew and sought to do the will of the Master of Life, Te'haroⁿ'hywă'k'hoⁿ'. His mother and grandmother were poor and despised and lived alone in a small lodge by themselves on the outskirts of the village to which they belonged, and so they had few, if any, visitors who might seek the daughter for a wife. But there came a day when the watchful mother became aware that her daughter would herself in due time give birth to a child, and bitterly did she reprove her for not marrying a man in the customary way, for now she was bringing scandal upon her mother and herself. The daughter, however, steadfastly denied that she had had commerce with any man at any time, but her mother doubted her and carried her reproof so far as to cause the daughter much bitterness of spirit, and she, therefore, spent much time in silently weeping, for she loved her mother and claimed that she did not know the cause of her pregnancy, and she was deeply grieved by her mother's chiding. It was then that the mother had a dream in which she was told by a divine messenger that she was doing her daughter great wrong in not believing her statement that she did not know the source of her condition; and she was further told that her daughter would bear a male child, whom they must call Deganawida, and that he would be indirectly the cause of ruin to their people.

The repentant mother upon awaking asked her daughter's forgiveness for the wrong she had done her in not believing her denials. They, however, decided to destroy the life of the child when it should be born because of the dream's declaration that he would grow up and be the source of evil to their people. So when the child was born they carried it to a neighboring stream of water, which was frozen over, and cutting a hole in the ice thrust the child into it to drown, and they returned to their lodge. But when they awoke in the morning they found the child unharmed and lying asleep between them. This attempt to rid themselves of this child was repeated twice more, but each time no harm came to the child, and then after consultation the two women decided that it was the will of the Master of Life that they should raise the child. They were most kind to him thereafter, and they gave him the name Deganawida, as the dream had directed the grandmother to do. He was reputed to have been one of seven brothers, but in regard to the father or fathers of the six younger brothers tradition is silent.

When he grew to man's estate he informed his mother and grandmother that he must leave them to perform a great work in lands lying south of the great lake. He left them in a "white canoe," which perhaps was a canoe of white birch, which later tradition has carelessly confounded with the ice canoe (= ice block) in which the Iroquoian myth of the Beginnings says the Winter God goes from place to place and which by further corruption of the misconception in modern literature has become a "flint" or "stone" canoe.

Tradition ranks Deganawida with the demigods, because of the masterful *orenda* or magic power with which, it was alleged, he tirelessly overcame the obstacles and difficulties of his great task; because of the astuteness and the statesmanship he displayed in negotiation; and lastly, because of the courage and wisdom he showed in patiently directing the work of framing the laws and elucidating the fundamental principles on which they and the entire structure of the Iroquois league or confederation must rest, if these were to endure to secure the future welfare of their posterity. He was a prophet and statesman and lawmaker of the Stone Age of North America. Tradition ascribes his lineage to no tribe, lest his personality be limited thereby.

The traditions concerning the person who has become known as Hiawatha on close examination are found to describe two very different

personages.

In one tradition Hiawatha when first seen by Deganawida was a cannibal and was actually engaged in bringing the carcass of a human being into his lodge, which he quickly proceeded to quarter and cook in a pot of water. He had been out hunting for human beings, and meeting this one had killed him for his larder.

Deganawida had previously heard of his cannibalistic habits from Djigonsasen, the chieftainess of the Neutral nation (or tribe), who was the first person to understand and to accept the radical program of Deganawida for stopping the shedding of human blood by violence and for the establishment of peace and equity and righteousness and power.

Unseen by Hiawatha, Deganawida, the tradition says, mounting to the top of the lodge watched Hiawatha at work; peering through the smoke hole from a point just over him, Deganawida saw what was being done by Hiawatha and, tradition says, caused him by mental suggestion to realize the horrible enormity of what he was then doing; so he mistook the face of Deganawida, reflected in the pot, for his own, and being struck with the great beauty of that face he contrasted it with the character of the work in which he was then engaged and exclaimed, tradition says: "That face and this kind of business do not agree"; and he then and there resolved to give up cannibalism for all time. He quickly arose and carried the pot out of the lodge and cast its contents away at some distance from the lodge.

Deganawida having descended from the top of the lodge went forward to meet his host. Because of his recent experience Hiawatha was very much pleased to have a guest who brought him the wonderful message of peace and righteousness and power. The result of this conference was the conversion of Hiawatha to the reform program of Deganawida and his agreement to aid in the work of bringing about the change in the attitude and relation of men one to another.

According to tradition, Deganawida gave him his name after his conversion, and Hiawatha became a loyal and enthusiastic disciple of Deganawida and gave up everything in order to devote all his energies and time to the work of establishing the projected league or confederation of peoples in accordance with the principles expounded by Deganawida. He

indeed undertook several very important missions for his great teacher and acquitted himself with great credit.

The most effective and unscrupulous opposition the two reformers encountered in their work came from the noted Onondaga chief, Atotarho (Watatotarho), a wizard and sorcerer who was feared far and near, who, during the years in which the league was being brought into being, removed by secret means, it is said, the seven daughters (some versions say three) and then the wife of Hiawatha, his opponent.

No place is given by tradition as Hiawatha's birthplace, although some analysts declare that he was a half-brother of the fierce chieftain Atotarho (Watatotarho), of the Onondaga, his pitiless antagonist.

This tradition asserts that he lived among the Mohawk and married the daughter of a chief there and that he himself became a chief among these people. His name is still on the list of titles of federal Mohawk chiefs.

In the other version of the tradition of the founding of the league of the Iroquois Hiawatha is treated as the chief actor in the conception and establishment of this confederacy instead of the real founder, Deganawida. But from a careful survey of the narrative of events herein this version is found to be much less faithful to facts than the one first mentioned.

It appears that in this tradition the several missions upon which his mentor, Deganawida, sent him, were fused together in such wise as to make them merely a series of events or episodes in a single journey of Hiawatha, which he was alleged to have made in despair, going directly southward from the Onondaga council lodge; on this journey he was said to "have split the sky," meaning merely that he took a course directly south. Herein, too, he fled from Onondaga because of vexation of spirit for the loss of his children by the will of the great sorcerer, Atotarho (Watatotarho).

The descriptive details are highly interesting to the antiquarian because they shed some faint light on the kind of pledge or vouch which was in use before wampum and wampum strings came into vogue for that purpose. On this journey some of the persons delegated to communicate with Hiawatha used for a pledge small shoots of the elderberry bush which were cut into short pieces, and from which the pith was removed, and these little cylinders strung on small cords of sinew; likewise, the tradition continues,

the quills of large feathers, cut off and strung on cords, were also used as tokens, pledges, or vouches for the good faith of the messenger or speaker.

Fresh-water shells were substituted by Hiawatha for these things. Coming to a small body of water, he saw its surface literally covered by ducks swimming about. He went near and exclaimed, "Do you not attach any importance to my mission?" At once the ducks flew up into the air, bearing up with them the water of the lake. Hiawatha at once went down into the bottom of the lake, thus made dry, and there he saw many shells of various colors. These he gathered and placed in a skin bag which he carried. When the bag had been filled he returned to the shore of the lake, and selecting a suitable place sat down there and, tradition says, strung the 28 strings with their messages, which are employed in the ritual of the condoling and installation ceremony of the league to this day, although these fresh-water shells have long been replaced by wampum beads.

It is thus seen that this tradition makes Hiawatha the designer of the pledges for this rite, although the matter of the tradition shows that this cannot be true, because the use of a set number of topics of the "comfort," or rather "requickening address," was in vogue among other tribes of the Iroquoian linguistic stock—the Huron, for example.

The name Hiawatha was immortalized by Longfellow in the beautiful poem bearing this name, although there is nothing in the poem that can be predicated of the historical person bearing that name. This was due to the mistake of confusing two names—that of Hiawatha with that of the Iroquoian god, the Master of Life, the one who gives or creates all life, both faunal and floral, on the earth.

Mr. J. V. H. Clark, in his "Onondaga, etc.," is directly responsible for this confusion, for, although Schoolcraft added to it, Mr. Clark brought it to pass in the first instance. In the hands of careless hearers and recorders native Indian names which in fact have no relationship whatsoever are readily confounded. In the Mohawk dialect of the Iroquoian stock of languages (and in all others of this stock using the r-sound in their phonetics) Teharonhiawagon approximately records the sounds in the name of the Life God or the Master of Life; but this name in Onondaga (and in all other dialects of this stock, which do not use the r-sound), becomes Dehaenhiawagi. This name, misspelled, appears in print as Ta-oun-ya-wat-

ha, Thannawege, Taonhiawagi, and Tahiawagi, etc.; but between these and the dubious attempts to record the native original for the Anglicised Hiawatha—namely, Tahionwatha, Taoungwatha, Ayonhwatha, Hayenwatha, Hayonwentha, etc.—there is no relationship whatever. But Clark, misled, perhaps, by otosis and misconception and by a confused tradition, identifies in direct statement the two names and the two persons.

Schoolcraft, when gathering material for his Notes on the Iroquois, received a number of fragmentary mythic tales about the Iroquoian god, the Master of Life and also traditional stories about one of the chief founders of the league. But as these had been confounded by Clark and made to relate to a single individual Schoolcraft indiscriminatingly adopted this intermixture, and added to the mischief by transferring Hiawatha to the region of the Great Lakes, and there identified him with Nanabozho, the Master of Life, or God of Life, of the Chippewa and other Algonquian cognates.

Now, the Mohawk Iroquoian Teharonhiawagon and the Chippewa Algonquian Nanabozho are approximately identical mythic conceptions, but neither has in fact or fiction any feature predicable of Hiawatha. Schoolcraft's *The Hiawatha Legends*, to which we owe the charming poem of that name by Longfellow, were chiefly mythic tales and fiction about Nanabozho, the Chippewa Master of Life, but which contain nothing about Hiawatha, an Iroquoian chieftain of the sixteenth century.

Were Europeans of some day in the future shown a great narrative of French epic adventure in which Prince Bismarck, the despoiler of France, should appear as the central and leading Gallic hero in the glory and triumph of France, the absurdity and error would not be greater or more towering than in these blunders of Clark and Schoolcraft concerning Hiawatha and the Master of Life of Iroquoian and Algonquian mythic thought.

In the establishment of this highly organized institution the swart statesmen, Deganawida, Hiawatha, and their able colleagues, and the equally astute stateswoman, Djigonsasen, a chieftainess of the Neutral nation (or tribe), then very powerful and warlike, united their efforts in bringing to a successful issue, notwithstanding bitter intratribal opposition, a peaceful revolution in the methods, in the scope, in the forms, and in the

purposes of government extant among their respective peoples—a much needed reform which was at once fundamental and far-reaching in its immediate effects and future possibilities.

The dominant motive for the establishment of the League of the Five Iroquois Tribes was the impelling necessity to stop the shedding of human blood by violence through the making and ratifying of a universal peace by all the known tribes of men, to safeguard human life and health and welfare. Moreover, it was intended to be a type or model of government for all tribes alien to the Iroquois. To meet this pressing need for a durable universal peace these reformers proposed and advocated a constitutional form of government as the most effective in the attainment of so desirable an end.

The founders of the league, therefore, proposed and expounded as the requisite basis of all good government three broad “double” doctrines or principles. The names of these principles in the native tongues vary dialectically, but these three notable terms are expressed in Onondaga as follows: (1) *Ne'' Skěñ'noⁿ*, meaning, first, sanity of mind and the health of the body; and, second, peace between individuals and between organized bodies or groups of persons. (2) *Ne'' Gaii'hwiyo'*, meaning, first, righteousness in conduct and its advocacy in thought and in speech; and, second, equity or justice, the adjustment of rights and obligations. (3) *Ne'' Gă's'hasdēⁿ'să'*, meaning, first, physical strength or power, as military force or civil authority; and, second, the orenda or magic power of the people or of their institutions and rituals, having mythic and religious implications. Six principles in all. The constructive results of the control and guidance of human thinking and conduct in the private, the public, and the foreign relations of the peoples so leagued by these six principles, the reformers maintained, are the establishment and the conservation of what is reverently called *Ne'' Gayaněñ'să'gō'nă'*—i. e., the Great Commonwealth, the great Law of Equity and Righteousness and Well-being, of all known men. It is thus seen that the mental grasp and outlook of these prophet-statesmen and stateswomen of the Iroquois looked out beyond the limits of tribal boundaries to a vast sisterhood and brotherhood of all the tribes of men, dwelling in harmony and happiness. This indeed was a notable vision for the Stone Age of America.

Some of the practical measures that were put in force were the checking of murder and bloodshed in the ferocious blood-feud by the legal tender of

the prescribed price of the life of a man or a woman—the tender by the homicide and his clan for accidentally killing such a person was 20 strings of wampum, 10 for the dead man and 10 for the forfeited life of the homicide; but if the dead person were a woman, the legal tender was 30 strings of wampum, because the value of a woman's life to the community was regarded as double that of a man. And cannibalism, or the eating of human flesh, was legally prohibited. Even Hiawatha forswore this abominable practice before taking up the work of forming the league.

The institution of the condoling and installation council was important and most essential to the maintenance of the integrity of their state, for the ordinances of the league constitution required that the number of the chiefs in the federal council should be kept intact. So to the orenda, or magic power, believed to emanate and flow from the words, the chants and songs, and the acts of this council, did the statesmen and the ancients of the Iroquois peoples look for the conservation of their political integrity and for the promotion of their welfare.

So potent and terrible was the orenda of the ritual of the mourning installation council regarded, that it was thought imperative to hold this council only during the autumn or winter months. Since its orenda dealt solely with the effects of death and with the restoration and preservation of the living from death, it was believed that it would be ruinous and destructive to the growing seeds, plants, and fruits, were this council held during the days of birth and growth in spring and in summer. To overcome the power of death, to repair his destructive work, and to restore to its normal potency the orenda or magic power of the stricken father side or mother side of the league, and so making the entire league whole, were some of its motives.^[1]

^[1] See the writer's article on this subject in *Holmes Anniversary Volume*, Washington, 1916.

In eulogizing their completed labors the founders of the league represented and described it as a great human tree of flesh and blood, noted for size and length of leaf, which was also represented as being set up on a great white mat—that is to say, on a broad foundation of peace, and whose top pierced the visible sky. It was conceived as having four great white roots composed of living men and women, extending respectively eastward, southward, westward, and northward, among the tribes of men who were

urgently invited to unite with the league by laying their heads on the great white root nearest to them. It was further declared that should some enemy of this great tree of flesh and blood approach it and should drive his hatchet into one of its roots, blood indeed would flow from the wound, but it was said further that this strange tree through its orenda would cause that assailant to vomit blood before he could escape very far. In certain laws the federal chiefs are denominated standing trees, who as essential components of the great tree of the league are absorbed in it, symbolically, and who are thus said to have one head, one heart, one mind, one blood, and one dish of food.

The ties which unite a tribe with its gods—ties of faith and the bonds of duty and obligation of service which bind the persons of the tribe unitedly together, ties of blood and affinity—are the strongest operative among tribal men and women. Every undeveloped people or human brood of one blood and origin live under the direct care and special providence of its gods and so seeks to maintain, by suitable rite and ceremony, unbroken and intact relation and converse with them. From the legends and traditions of such a people it is learned that all that they have, all that they do ritually, and all that they know, they have received freely by the grace of their gods. The tribes of the Iroquois people were no exception to this rule.

In Iroquois polity there was a definite separation of purely civil from strictly religious affairs. So the office of civil chief was clearly marked off from that of prophet or priest, and in so far as an incumbent was concerned it was the gift of the suffrages of a definite group of his clanswomen, and so in no sense was it hereditary. The office was hereditary in the clan, and strictly speaking in some family line of the clan. The civil assembly, or the council of chiefs and elders or senators, was in no sense a religious gathering, notwithstanding the custom of opening it with a thanksgiving prayer in recognition of the Master of Life—a strictly religious act. The officers of the religious societies and assemblies were not the same as those who presided over the councils of chiefs. And it is noteworthy that a federal chief must not engage in warfare while clothed with the title and insignia of office; to do so he was required to resign his office of federal chief during his absence on the warpath.

There is a dualism in organization running through all public assemblies of the Iroquois peoples living under the earlier culture. It must be noted that this dual character of the tribal and league organization does not rest on blood ties or affinity, or on common religious rites, but rather on the motive to dramatize two dominant principles which appear to pervade and energize all observed sentient life. In short, this dualism is based primarily on certain mythic concepts regarding the source of life and the most effective means of conserving it on earth among men. Among the Iroquois people of to-day the knowledge of the reason for the persistent dual organization of tribe and league has been lost completely. But a painstaking analysis of rituals and of certain terms appearing in them gives us a trustworthy clue to the reason for a dualism in organization. The reason thus deduced is the need for embodying in the tribal organic unity the principles of the complementary sexes as organic factors in order to secure fertility and abundant progeny. In short, it was deemed imperative to recognize the male and female principles of the biotic world and all that such recognition implies—fatherhood and motherhood and the duties and obligations arising from these states, as defined in Iroquois thinking. This dualism makes the life of the father and the mother endure with that of the clan of which either is a member. The same is true of sonship and daughtership.

This ascription of sex to groups—organic groups—of persons measurably explains the potent motive which underlies the apparently artificial rule of exogamy that controls certain groups of persons as against other like groups of persons.

By the prophet-statesmen of the early Iroquois and their cotribesmen the League of the Five Tribes as an institution—as an organic unity—was conceived at times as a bisexed being or person; i. e., as an organic unity formed by the union of two persons of opposite sexes. To those early prophet-statesmen life was omnipresent—obtrusively so, for, unconsciously, their ancestors had imputed it to all bodies and objects and processes of the complex world of human experience. But it must be noted that the life so imputed was human life, no other. And so as an institution the league was conceived as an animate being, endowed with definite biotic properties and functions, as the male and female sexes, fatherhood and motherhood, mind, eyesight, dream power, human blood, and the possession of guardian spirits for its two highest organic members.

In the ritual of the installation of chiefs in all the many addresses and chants and songs, each of the two constituent organic members, the father and the mother sides, is addressed as a single individual. In the famous so-called six songs of the mourning and installation council, which are so dramatically sung by a chief who represents the dead chief or chiefs to be resurrected, each of the two constituent persons is addressed, but in the fifth song, the totality, the league as a unity is addressed as a person, to whom is sung this farewell song of the departing chief. This is done evidently to secure the departure of the ghost in peace.

Again, the lamenting cry of “hai’i, hai’i,” which is so tediously recurrent in all the chants and songs, but one, of the mourning and installation council, is employed, it is said, in order to console the spirits or spirit of the dead. The reason for using this particular cry is that it is reputed to be that made by spirits when moving from place to place. But it was believed that should this cry be omitted in the rituals the displeasure of the departed spirits would be manifested in an epidemic of diseases affecting the spine and the head.

The duties and obligations of the clan or sisterhood of clans of a father to the clan of his children were by the founders of the league made a part of the functions of the male member, or sisterhood of tribes, in the organic structure of the league. In like manner the duties and obligations of the clan or sisterhood of clans of a mother to the clan or sisterhood of clans of the father of the children were made a part of the functions of the female member, or sisterhood of tribes, in the organic structure of the league. Thus the two constituent members of the highest order in the structure of the league were the female group of two tribes and the male group of three tribes, respectively representing the mother and the father sides, the female and male principles, the whole representing the union of fatherhood and motherhood for the promotion of the life force and welfare of the community.

The term *agadoñ’ni*, meaning “my father’s clansmen,” has two very distinct applications—first, to the clan of one’s father, and, second, to the male or father side of the league. And the term *kheya’da’wěⁿ*, meaning “my offspring,” also has two very different applications—first, to the clan of the children’s mother, and, second, to the female or mother side of the league. There were three tribes which constituted the male or father side of the

league structure—namely, the Mohawk, the Onondaga, and the Seneca; and two tribes, the Oneida and the Cayuga, originally constituted the female or mother side of the league. To the Onondaga, however, was given the noteworthy distinction of presiding over the deliberations of the federal council. This they did of course through their chiefs; but these chiefs did not have the right to discuss the question at issue. This apparent primacy of the Onondaga carried with it the office of fire keeper and the presiding officer of the federal council.

It must be noted that the mother or female complex of tribes and the father or male complex of tribes were held together by the exercise of certain rights and the performance of certain duties and obligations of the one to the other side.

The federal council, sitting as a court without a jury, heard and determined causes in accordance with established rules and principles of procedure, and with precedent.

Transcriber's Notes:

- Blank pages have been removed.
- Obvious typographical errors have been silently corrected.

*** END OF THE PROJECT GUTENBERG EBOOK A
CONSTITUTIONAL LEAGUE OF PEACE IN THE STONE AGE OF
AMERICA ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.